

SENATE No. 2596

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr and Ann-Margaret Ferrante

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to maintenance of private roads in the city of Gloucester.

PETITION OF:

NAME:	DISTRICT/ADDRESS:
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>
<i>Ann-Margaret Ferrante</i>	<i>5th Essex</i>

SENATE No. 2596

By Mr. Tarr and Ms. Ferrante of Gloucester, a joint petition (accompanied by bill, Senate, No. 2596) of Bruce E. Tarr and Ann-Margaret Ferrante (with approval of the mayor and city council) for legislation relative to the appropriation and expenditure of funds for the maintenance, repair and improvement of private roads under certain conditions. Municipalities and Regional Government. [Local approval received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to maintenance of private roads in the city of Gloucester.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding Section 6N of Chapter 40 of the General Laws or any
2 other general or special law to the contrary, the city of Gloucester may appropriate and expend
3 public funds for the maintenance, repair, and improvement of private roads when the following
4 conditions are met:

5 1) The private road serves a minimum of ten (10) residential properties that contribute
6 property tax revenue to the City of Gloucester.

7 2) The private road is a connector street between two roads;

8 3) The private road leads to a place of interest open to the public such as a community or
9 recreational venue/facility or a multi-use commercial or recreational location.

- 10 4) The private road is not maintained by a developer or private entity under an agreement
11 or covenant requiring such maintenance.
- 12 5) The private road is primarily used as a through street by non-abutting property owners.